

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 1436

By: Nice of the Senate

and

Roe of the House

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9 An Act relating to hospitals; imposing certain duties
10 on hospital in cases of fetal death or miscarriage;
11 requiring the State Department of Health to develop
12 and publish certain form; providing for codification;
13 and providing an effective date.

14 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

15 SECTION 1. NEW LAW A new section of law to be codified
16 in the Oklahoma Statutes as Section 1-702g of Title 63, unless there
17 is created a duplication in numbering, reads as follows:

18 A. When a fetal death occurs in a hospital, or when a woman
19 presents to a hospital for treatment of a miscarriage, the hospital
20 shall, prior to discharge:

21 1. Provide the woman or her designee with a physical or digital
22 copy of the form described in subsection B of this section; and
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1 2. Ensure that a hospital staff member verbally communicates
2 that the woman or family may request the certificates listed on the
3 form through the process described on the form.

4 B. The State Department of Health shall, for the purposes of
5 this section, develop and publish on its public website a form that:

6 1. Explains the process for requesting a fetal death
7 certificate under Section 1-318 of Title 63 of the Oklahoma Statutes
8 and the process for requesting a certificate of birth resulting in
9 stillbirth under Section 1-318.2 of Title 63 of the Oklahoma
10 Statutes; and

11 2. Provides contact information for the Division of Vital
12 Records of the Department.

13 SECTION 2. This act shall become effective November 1, 2026.

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15 COMMITTEE REPORT BY: COMMITTEE ON HEALTH AND HUMAN SERVICES
16 OVERSIGHT, dated 04/16/2026 - DO PASS.
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